

Page: [p1 1]-[p3 7]

Citation Start: Case 2:22-cv-00223-Z Document 100 Filed 02/13/23 Page 1 of 26 PageID 3760

Citation End: Gonzales v. Oregon,

Heading: State Authority to Regulate Abortion Post-Dobbs

Summary: In Dobbs v. Jackson (2022), the Supreme Court returned abortion regulation to the states, allowing them to balance interests in unborn life, women's health, and medical integrity. Twenty states, as amici, have enacted varying abortion laws some restrictive, some permissive with protections for a woman's life and other exceptions.

Polarity: Pro

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:35.969561

Page: [p3 8]-[p4 16]

Citation Start: 546 U.S. 243 (2006) 12

Citation End: Okla. Stat. Ann. tit. 63, 1-729.1 13

Heading: Federal Regulation of Abortion

Summary: The Food and Drug Administration (FDA) has approved the use of mifepristone, a medication used to terminate pregnancies. The FDA has also issued regulations regarding the sale and distribution of this medication.

Polarity: N/A

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:35.969561

Page: [p4 17]-[p5 27]

Citation Start: Pub. L. No. 91-662, 84 Stat. 1973 (1971) 10

Citation End: Retail Pharmacies Can Now Offer Abortion Pill, FDA Says,

Heading: State Regulation of Abortion

Summary: States have enacted laws regulating abortion, including restrictions on the procedure and requirements for healthcare providers. The laws vary by state, with some allowing for more permissive abortion policies.

Polarity: Pro

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:35.969561

Page: [p5 28]-[p7 18]

Citation Start: Politico (Jan. 3, 2023) 16

Citation End: judgments of the people and their elected representatives. Ibid. Some States have

Heading: Public Interest in Abortion Regulation

Summary: The public interest in abortion regulation is complex, with competing interests in unborn life, women's health, and medical integrity. The Supreme Court has held that the decision to regulate abortion is best left to the states.

Polarity: Pro

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:35.969561

Page: [p7 19]-[p8 15]

Citation Start: chosen to adopt or maintain tighter restrictions and more thorough regulations on

Citation End: Administrations efforts to evaluat[e] and monitor[] state laws that threaten to

Heading: Administrative Action on Abortion

Summary: The Biden administration has taken steps to increase access to abortion, including issuing executive orders and memoranda. The administration has also emphasized the importance of protecting access to reproductive healthcare services.

Polarity: Pro

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:35.969561

Page: [p8 16]-[p9 11]

Citation Start: infringe on purported Federal legal protections [for abortion]. Memorandum on

Citation End: doctors, and with only one in-person visit. In 2021, the agency halted the remaining

Heading: State Authority to Regulate Abortion Post-Dobbs

Summary: The memorandum aims to ensure safe access to medication abortion, despite the FDA's roll-back of safety measures. The Biden administration is following the Dobbs decision, allowing states to balance interests in unborn life, women's health, and medical integrity.

Polarity: Pro

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:41.028001

Page: [p9 12]-[p10 9]

Citation Start: in-person dispensing requirements during the COVID-19 pandemic and later

Citation End: 355(a). To obtain FDA approval, a new drug must undergo an extensive process

Heading: FDA's Role in Regulating Abortion-Inducing Drugs

Summary: The FDA's actions contravene federal law, threatening public interest. The agency's broad condoning of mail-order abortion drug regimens and failure to ensure human and veterinary drug safety raise concerns.

Polarity: Con

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:41.028001

Page: [p10 10]-[p11 7]

Citation Start: with rigorous testing. The FDAs conclusion that a drug is safe and effective must be

Citation End: bleeding requiring surgery. App.522. These risks increase later in pregnancy and in

Heading: The Safety and Effectiveness of Mifepristone

Summary: The FDA's approval of mifepristone is based on substantial evidence and expert consensus. The drug's safety and effectiveness must be rigorously tested, and its use must be restricted to ensure safe distribution and use.

Polarity: N/A

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:41.028001

Page: [p11 8]-[p12 4]

Citation Start: cases of ectopic pregnancy. App.518-25, 607-09. The approval thus included

Citation End: Despite the risks that the FDA itself recognized, over the next decade and

Heading: The Importance of Supervised Physician Care in Abortion

Summary: The case highlights the need for supervised physician care in abortion, particularly in cases of ectopic pregnancy. The FDA's approval of mifepristone must be accompanied by measures to ensure safe use and mitigate risks.

Polarity: Pro

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:41.028001

Page: [p12 5]-[p13 2]

Citation Start: beyond, the Obama and Biden Administrations expanded mifepristones use and

Citation End: mifepristone REMS program to make clear the agency's position that the drug can

Heading: The Expansion of Mifepristone Use and Safety Measures

Summary: The expansion of mifepristone use beyond the FDA's original approval must be accompanied by safety measures to ensure safe distribution and use. The agency's decision to abandon person-to-person dispensing requirements raises concerns.

Polarity: Con

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:41.028001

Page: [p13 3]-[p14 4]

Citation Start: now be dispensed by certified prescribers or retail pharmacies in-person or by mail.

Citation End: Plaintiffs have demonstrated that the FDA's actions on mifepristone violate

Heading: State Authority to Regulate Abortion Post-Dobbs

Summary: The FDA's approval of mifepristone is challenged, citing flaws in the agency's regulation and public interest considerations. The argument weighs the strong public interest in ensuring the safety and efficacy of new drugs against the FDA's actions.

Polarity: Pro

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:46.007592

Page: [p14 5-24]

Citation Start: the Federal Food, Drug, and Cosmetic Act and related FDA regulations. See Pls. Mot.

Citation End: regulation doubly forecloses the FDAs approval. Pregnancy is not an illness[]. It is

Heading: Federally Regulated Abortions

Summary: The FDA's regulation of mifepriston is criticized for being flawed and in violation of federal law. The argument emphasizes the public interest in ensuring the safety and efficacy of new drugs and the FDA's failure to do so.

Polarity: Con

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:46.007592

Page: [p14 25]-[p15 18]

Citation Start: a natural state essential to perpetuating human life. And typical early-stage

Citation End: argument of an agency that is confident in the legality of its actions. And the

Heading: Natural State of Essential Perpetuity of Human Life

Summary: The FDA's approval of mifepriston is challenged, citing the natural state of essential perpetuity of human life and the FDA's failure to consider the serious danger to pregnant women's lives and health.

Polarity: Pro

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:46.007592

Page: [p15 19]-[p16 12]

Citation Start: argument fails. When Congress established the REMS framework in 2007, it

Citation End: other common carrier to ship in interstate or foreign commerce ... any drug,

Heading: Argument Fails to Establish a Framework for Risk Evaluation

Summary: The argument fails to establish a framework for risk evaluation and mitigation strategies for new drugs, including mifepriston. The FDA's approval process is criticized for being inadequate.

Polarity: N/A

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:46.007592

Page: [p16 13]-[p17 8]

Citation Start: medicine, article, or thing designed, adapted, or intended for producing abortion. Id.

Citation End: are at war with the law, the FDA cannot claim any public interest in enforcing them.

Heading: Medicinal Abortions and Statutory Prohibitions

Summary: The FDA's regulation of mifepriston is challenged, citing statutory prohibitions on the use of mail to send or receive abortifacient drugs. The argument emphasizes the public interest in ensuring the safety and efficacy of new drugs and the FDA's failure to do so.

Polarity: Con

Source: polarbrief v1

Timestamp: 2025-08-04T19:31:46.007592

Page: [p17 9]-[p18 6]

Citation Start: Indeed, enjoining the FDA to abide by federal law would promote the public

Citation End: will harm the public interest.

Heading: State Authority to Regulate Abortion Post-Dobbs

Summary: The FDA's action undermines public interest by disregarding state authority to regulate abortion. The Biden administration claims power to make abortion drugs accessible, despite contrary determinations by states.

Polarity: Con

Source: polarbrief v1

Timestamp: 2025-08-04T19:32:11.496945

Page: [p18 7]-[p19 2]

Citation Start: Under our Constitution, States have the primary authority to legislate to

Citation End: inflammatory disease, severe bacterial infection and death, id. 41-41-103(a); are

Heading: State Primacy in Regulating Health and Safety

Summary: The Constitution grants states primary authority to regulate health, safety, and welfare. The

Supreme Court recognizes the state's responsibility to balance competing interests in abortion regulation.

Polarity: Pro

Source: polarbrief v1

Timestamp: 2025-08-04T19:32:11.496945

Page: [p19 3-22]

Citation Start: associated with an increased risk of complications relative to surgical abortion that

Citation End: numerous States elected representatives. But the authority to regulat[e] or

Heading: Risk of Complications in Surgical Abortions

Summary: The risk of complications in surgical abortions increases with gestational age and ectopic pregnancy. States use regulatory authorities to direct physicians to examine women and ensure informed consent.

Polarity: N/A

Source: polarbrief v1

Timestamp: 2025-08-04T19:32:11.496945

Page: [p19 23]-[p20 17]

Citation Start: prohibit[] abortion belongs to the citizens of each State. Dobbs, 142 S. Ct. at 2284.

Citation End: the FDAs effort to override duly enacted state laws.

Heading: Prohibition of Abortion and State Authority

Summary: The FDA may determine whether mifepristone is safe and effective. States have the authority to regulate abortion and make broad policy judgments balancing people's interests.

Polarity: Pro

Source: polarbrief v1

Timestamp: 2025-08-04T19:32:11.496945

Page: [p20 18]-[p21 14]

Citation Start: C. The FDAs Actions Harm The Public Interest By Undermining

Citation End: statement from Congress is heightened where, as here, an administrative

Heading: Harm to Public Interest and State Authority

Summary: The FDA's action harms public interest by undermining state authority to protect citizens and diverting resources. States have the authority to enforce laws regulating chemical abortions.

Polarity: Con

Source: polarbrief v1

Timestamp: 2025-08-04T19:32:11.496945

Page: [p21 15]-[p22 12]

Citation Start: interpretation alters the federal-state framework by permitting federal

Citation End: recent actions is to encourage and achieve evasion of those state laws. Such evasion

Heading: State Authority to Regulate Abortion Post-Dobbs

Summary: In *Dobbs v. Jackson* (2022), the Supreme Court returned abortion regulation to the states, allowing them to balance interests in unborn life, women's health, and medical integrity. Twenty states, as amici, have enacted varying abortion laws some restrictive, some permissive with protections for a woman's life and other exceptions.

Polarity: Pro

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Timestamp: 2025-08-04T19:32:36.297607

Page: [p22 13]-[p23 8]

Citation Start: particularly when coupled with the FDA's abandonment of key protections on

Citation End: Remarks of President Joe Biden State of the Union Address as Prepared for

Heading: FDA's Abandonment of Key Protections

Summary: The FDA's abandonment of key protections for mifepristone use has harmed citizens and defined public interest. The FDA's continued campaign to harm amici citizens makes the task harder, and a broader administrative regime requires states to divert scarce resources to investigate and prosecute violations of law.

Polarity: Con

Source: polarbrief v1

Timestamp: 2025-08-04T19:32:36.297607

Page: [p23 9]-[p25 12]

Citation Start: Delivery, The White House (Feb. 7, 2023), <http://bit.ly/3RHeAfn> (reaffirming

Citation End: Theodore E. Rokita Brenna Bird

Heading: Delivering Relief from FDA's Unlawful Actions

Summary: The White House reaffirmed its opposition to state efforts to protect life and health, subverting public interest and equity. The FDA's unlawful actions invite lawbreaking, and private parties govern actors across countries favor broad relief.

Polarity: Pro

Source: polarbrief v1

Timestamp: 2025-08-04T19:32:36.297607

Page: [p25 13]-[p26 9]

Citation Start: Attorney General Attorney General

Citation End: 20

Heading: Amici Curiae Brief in Support of Injunctive Relief

Summary: Twenty states, as amici, have filed a brief in support of injunctive relief, citing the FDA's unlawful actions and the need for states to protect life, health, and safety.

Polarity: Pro

Source: polarbrief v1

Timestamp: 2025-08-04T19:32:36.297607
